

SENATE No. 933

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the rights of faculty members at the University of Massachusetts.

PETITION OF:

NAME:

Patricia D. Jehlen

DISTRICT/ADDRESS:

Second Middlesex

SENATE No. 933

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 933) of Patricia D. Jehlen for legislation relative to the rights of faculty members at the University of Massachusetts. Higher Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 828 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the rights of faculty members at the University of Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 75 of the General Laws is hereby amended by striking out section 4 and inserting
2 in place thereof the following section:-

3 Section 4. The trustees shall determine the time and place of their meeting. Nine
4 members shall constitute a quorum. Meetings of the board of trustees shall be subject to the
5 provisions of sections 11A and 11A½ of chapter 30A; provided, however, that in addition to the
6 purposes set forth in said section 11A½, the trustees may hold an executive session to consider
7 the award of honorary degrees. The trustees may further hold an executive session to consider
8 the award of tenure to a member of the faculty, if the member who is being considered for tenure
9 in such executive session has been notified in writing, by the trustees, at least 48 hours prior to
10 the proposed executive session; provided, however, that notification may be waived upon

11 agreement of the parties; and provided, further, that the trustees shall hold an open meeting if
12 such member requests that the meeting be open. If an executive session is held, such member
13 shall have the following rights: (a) to be present at such executive session during discussion or
14 considerations which involve such member; (b) to have counsel or a representative of his own
15 choosing present and attending for the purpose of advising such member and not for the purpose
16 of active participation in said executive session; and (c) to speak on his own behalf.